lost its value as currency; we would therefore do no worse by concentrating initially on the legal and constitutional aspects of the case. Afzal's conviction is largely based on a confession extracted from him. Under what circumstances or on the basis of what assurances this confession was obtained is yet to be ascertained. In many countries, including the United States of America, self-incrimination is barred, either by law or by the nation's Constitution. As far as India is concerned, this is still a grey area.

It would nonetheless be both awkward and irrational to refuse to face a number of facts. Afzal was not a direct participant in the attack on Parliament; he was nowhere in the vicinity of New Delhi on that particular day. The Supreme Court has also disbelieved the claim that he belonged to any organized terrorist group. All he has been found guilty of is conspiracy for murder. However, under the Prevention of Terrorism Act, the penalty of death does not apply in the case of conspiracy, and it was under the provisions of POTA that he was arrested and sent for trial. The authorities chose to tag an additional charge against him—abetment of murder— under the Indian Penal Code, a procedure not adopted for others prosecuted along with him. It is a puzzle why this seeming invidiousness was not taken notice of by the nation's highest judiciary.

Should the legal doubts fail to cut much ice with the ultimate arbiters of Afzal's destiny, the constitutional issue would still remain much in the fore. The ruling in the Andhra Pradesh case notwithstanding, the power of the President to remit the death penalty, it can be argued, continues to hold good, for Article 72 has to be read along with Article 74. The latter article makes it obligatory for the President to go by the decision of the Council of Ministers in all matters under the sun. Whether to commute the death sentence on Afzal is a matter on which the President, too, is obliged to go by the views of his council of ministers. Moreover, Clause 2 of the Article writes in an exclusive directive: 'The question whether any, and if so what, advice was tendered by ministers to the President shall not be inquired into in any court.' No such admonition is attached to the provisions under Article 161 defining a state governor's power to offer pardon or commute a sentence; the goose-gander analogy therefore does not apply. The final decision whether to hang Afzal or allow him to live rests squarely on the Union council of ministers. And this is where the political factors involved come into overwhelming consideration.

All political parties that have a relevance in Jammu and Kashmir—with the exception, of course, of the Bharatiya Janata Party—are agreed that Afzal